

Public International Law

How to write a
Memorandum of Advice

What's next...



IRAC for Problem Solving

What are the **ISSUE(s)** –
identify the material facts and
issues,

RULE(s) (research/identify the
law and authority, normally
cases and statutes),

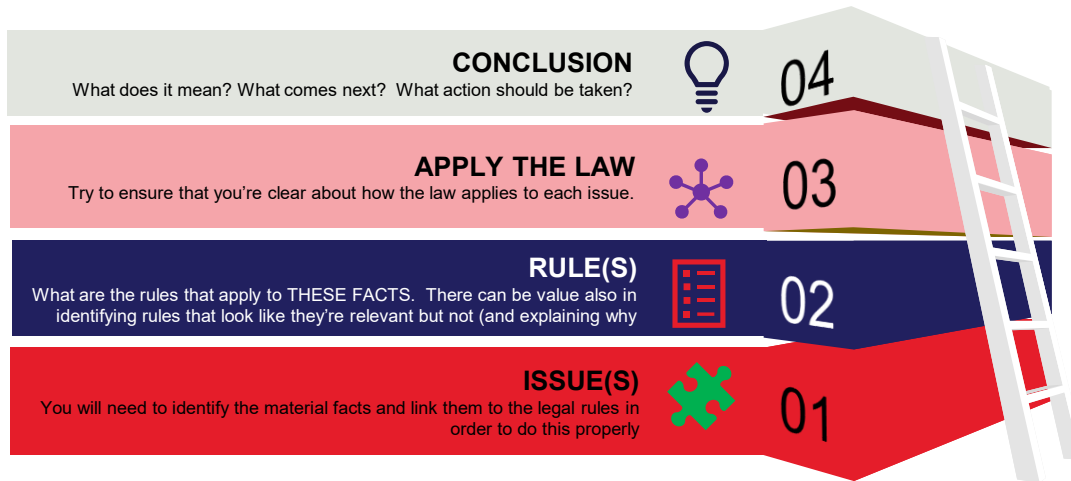
APPLY the law (rules)
(**Application**) and,

reach a (tentative)
CONCLUSION.



IRAC

USE IT TO PLAN AND TO ENSURE THAT YOU'VE ADDRESSED EVERYTHING THAT MATTERS



What is a memorandum of advice?

A memo of advice is usually used internally within a law firm, to inform legal colleagues about a particular issue. For example, your boss might have met with a client recently who has a particular legal issue that requires research. Your boss might ask you to undertake this legal research and brief them using a memo format.

A memo may also be used for a policy brief, where your client is a politician who requires a detailed briefing on a legal issue pertaining to policy or law reform.



Planning is important

Solve the problem before you start writing!

There is no one correct way to organise a memorandum. You can structure it to your own purposes.

The structure will depend on many things:

- purpose;
- reader's needs;
- instructions;
- nature of the issue;
- your legal findings;
- scope of research etc.

- Having an answer in mind before you start writing
- Structure your memo based on your answer
- Polish your answer while writing
- May realise new issues and adjust structure

Sort your ideas according to IRAC

Collect facts, issues, and rules

Separate facts, issues, and rules

Arrange your facts / assumptions chronologically

Ask yourself if all the facts are relevant, why they are there

Match or group your facts, issues, and rules



Set priorities

Sort your issues by complexity and relevance

Decide the importance of your issues

Choose the focus of your answer

Answer big and important issues first (word limits)

Move on to less important issues



There's no magic to getting started.....

A memorandum of advice structure often adopts the following headings at the start of the document.

TO: (Insert details of individual to whom the document is addressed)

FROM: (Insert details of person drafting the memorandum of advice)

DATE: (Insert date)

FILE: (If appropriate, insert the file reference number)

SUBJECT: (Insert the name of the client and the topic your memorandum relates to)



Table of contents?

- Completely up to you. If you wish to include one, put it at the beginning of your memo.
- **Think about your word limits. It will count towards your word limit, so make sure it adds value.**
- Can provide a useful outline for your reader – helps them find specific parts etc
- Depending on the length of your advice (say, more than 10 pages) a table of contents can be useful



1. Background / Introduction

- Describe the context, contextualise the problem for the reader. State briefly what you have been asked to do and why (research a client's legal problem for your principal solicitor, e.g., upcoming court appearance, client seeking legal opinion, legal question arising from draft agreement, proposed legislation, bench memo for a pending case).
- Identify scope of instructions and research (e.g. limited to Australian law or common law jurisdiction)
- State the purpose
- Brevity is key.
- **STATE / ANSWER THE QUESTION – What does your reader want to know?**
- Write it last? See later: **7. Conclusions**



2. Key facts (very brief)

This part ensures that you and your reader are starting with the same information. It tells your reader the genesis of your research and analysis and the basis of your conclusion. It permits your memorandum to stand on its own.

Summarise all **legally relevant** facts as you understand them. If appropriate, do so in a chart, table, or diagram. In any case, be concise and precise. Avoid a lengthy overview of facts (e.g. 300-500 words for a 3000 words essay, or 100 words for a 1000 words essay). This will 'eat into' your word count and will not gain you many marks. You can **incorporate key facts throughout your analysis**.

Identify your sources. Some possible sources are your reader; the client (if he or she is not your reader); the file; your own investigation.

Chronological order is often most helpful (unless another order seems more logical and makes the information more clear, such as grouping sets of facts that raise separate issues). Separating and numbering the facts might make them more understandable.

If there is some disagreement or uncertainty about the facts, say so and state both sides.

A summary of the facts might instead come after the issue/question and conclusion



3. Assumptions

If you have legally relevant, unanswered questions, you might need to make certain assumptions. Identify them either in a separate section or include them in a joint section entitled “FACTS AND ASSUMPTIONS.”

Don’t make assumptions that aren’t logical

Never, without basis, make assumptions that favour your clients position, if the facts don’t support it.

Think about the consequences of your assumption



4. Issues

Articulate the legal issues arising from the problem. By outlining them clearly, you present a roadmap for the reader to follow.

Articulate briefly, clearly, simply, concisely, precisely, and accurately.

Break down each question into all relevant sub-issues.

Present issues separately and clearly identify any sub-issues.

Deal with the most critical issues first, followed by any peripheral issues.

List issues and related sub-issues in a logical order. Number them.



5. Rules (law): Cases and Legislation

Give preference to **primary sources** (cases)

You need to distinguish between cases based on hierarchy, majority v dissenting, age etc

Set out verbatim if legislation is critical to your conclusion.

If you can't use a primary source, secondary sources should be peer-reviewed where possible.

- If longer than a page, consider paraphrasing and appending a highlighted, tabbed photocopy or printout. (Hint: appendices aren't counted for the purposes of word limit)



6. Discussion / Analysis

This is the most important part of your Memorandum or the 'heart' of your advice. It is where you describe the relevant law and apply the law to the facts, to reach reasoned conclusions.

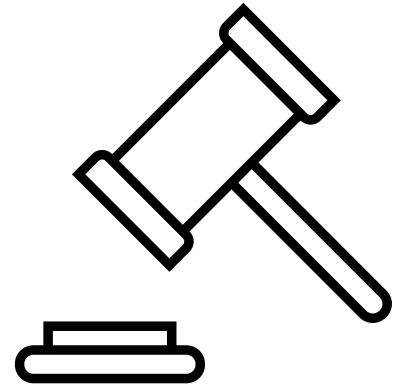
Ensure that you integrate case law and legislation into your analysis.

Describe the significant components, including the essential, germane facts and key issue(s), of the cases you've reviewed, and draw similarities and differences to the facts in your problem.

Predict how a court would *likely* resolve the issue(s) and apply the law to your specific facts.

Group similar cases. Summarise any common facts and principles that emerge from relevant cases.

Where appropriate, distinguish case law and precedent and draw inferences. For example, you might highlight that a NSW case is persuasive in a Victorian court. Assess where your problem fits into the range of fact situations of the pertinent cases.



6. Discussion / analysis (continued)

Extract and apply the key principles from the **leading cases**. Explain these principles clearly and succinctly. Use these principles as premises in your legal argument (i.e., a conclusion supported by reasons). Identify any trends in the case law.

Address fairly any arguments on *both* sides of an issue. Anticipate what positions and counterarguments might be advanced by the opposing side.

Don't ignore or conceal any uncertainties, inconsistencies, ambiguities, conflicts, gaps, or confusion in the law/facts. Explicitly identify them. Tell the reader what further information you will need

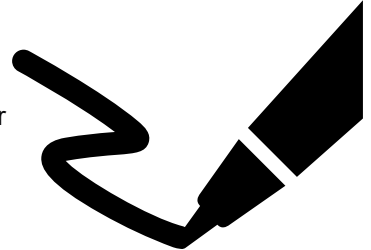
Don't mislead your reader about the current state of the law. Don't be inaccurately and overly one-sided or deceptively optimistic or pessimistic. Don't let wishful thinking cloud your reasoning. Give both the "good news" and "bad news," if any, of your research results.

Give a legal opinion (supported by law) on the strengths and weaknesses of your position. Present persuasively the best arguments based on any relevant legislation and common law principles.



6. Discussion / analysis (continued)

- Show your **reasoning**. Reach a **conclusion**. Ensure that it's supported by the law.
- Make any suitable recommendations about a course of action. Be creative. Think strategically.
- Focus on getting results.
- **Analyse each issue separately**. Show your reasoning, using a step-by-step approach.
- Use **HEADINGS** corresponding to each issue and sub-issue so that the discussion is easy to follow ("**signposting**"). Number them.
- Ensure that the hierarchy of headings is **logical and consistent**.
- Make the language of each heading correspond to the language of each issue or conclusion (i.e., **be consistent in the words you use**).
- Start each paragraph with a topic sentence (indented) to focus the discussion.
- If time, logistical, or other practical constraints force you to rely solely on secondary sources, say so. (This is real life advice.... In an assignment, **not so much!**)
- Identify any pertinent missing information and potentially outstanding issues.



Tips....

Begin with your strongest argument.

Discuss and evaluate the major points you want to make with evidence

Use a **topic sentence** to set up each paragraph.

Systematically discuss one point per paragraph

Move in a logical sequence from one point to the next.

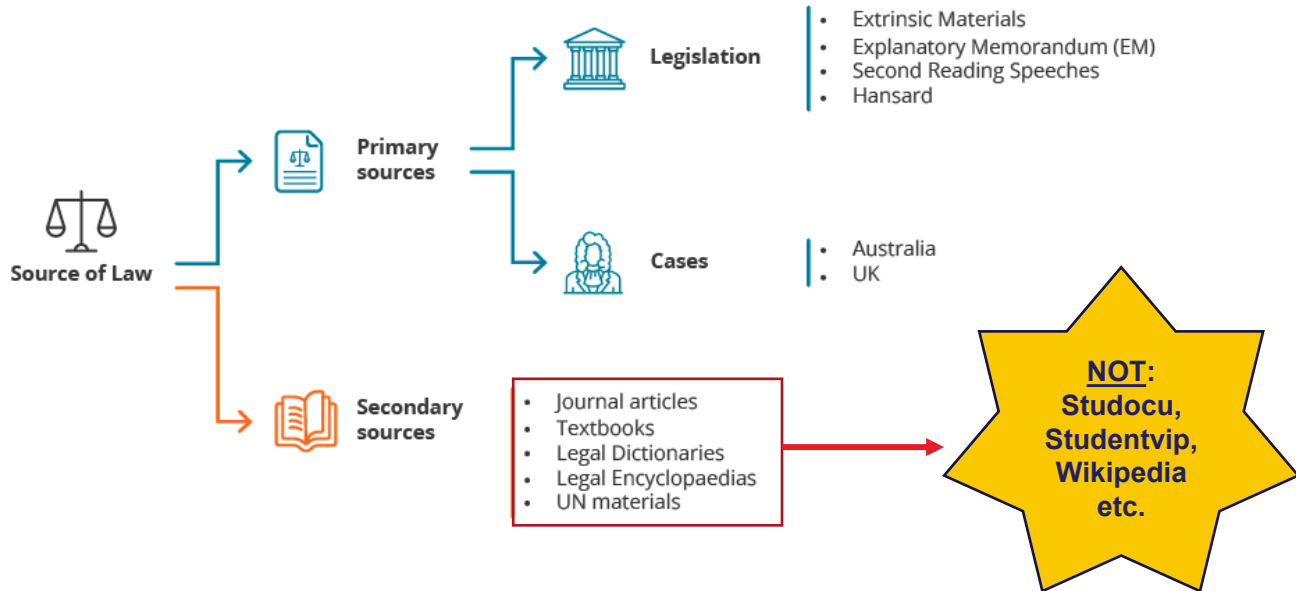
Show the connections between ideas with linking words. eg: 'However ...', 'In contrast to ...', 'In addition ...', 'Furthermore ...', 'Taking into consideration ...'

Conclude paragraphs or sections of your writing with a sentence that relates the issue discussed back to the topic.

Adopt a professional and objective tone



Research Tools



Your recommended textbooks, Other textbooks and Casebooks, Online databases

What else?



7. Conclusions / Executive Summary

This part is a ***precise and concise*** summary of your answers to the issues you've identified above based on your assessment of the *likely* application of the law to your case. It's an abbreviated statement of that which you analyse in detail in your discussion below.

Write this part last but present it first as well (i.e., as part of the executive summary before your detailed discussion) so that your reader knows quickly the bottom line before reading about how you got there. **Remember: you're not writing a suspense thriller or a murder mystery.**

Answer the question(s). State clearly your conclusion. Be direct, clear, and complete. Don't be indecisive, hesitant, or inconclusive. Take a stand. Identify any doubts about the outcome. Any qualifications of your opinion should be based on reason and supported by the law.

Don't reiterate your legal analysis and don't introduce "new" information and argument (i.e., information that does not appear in your discussion).

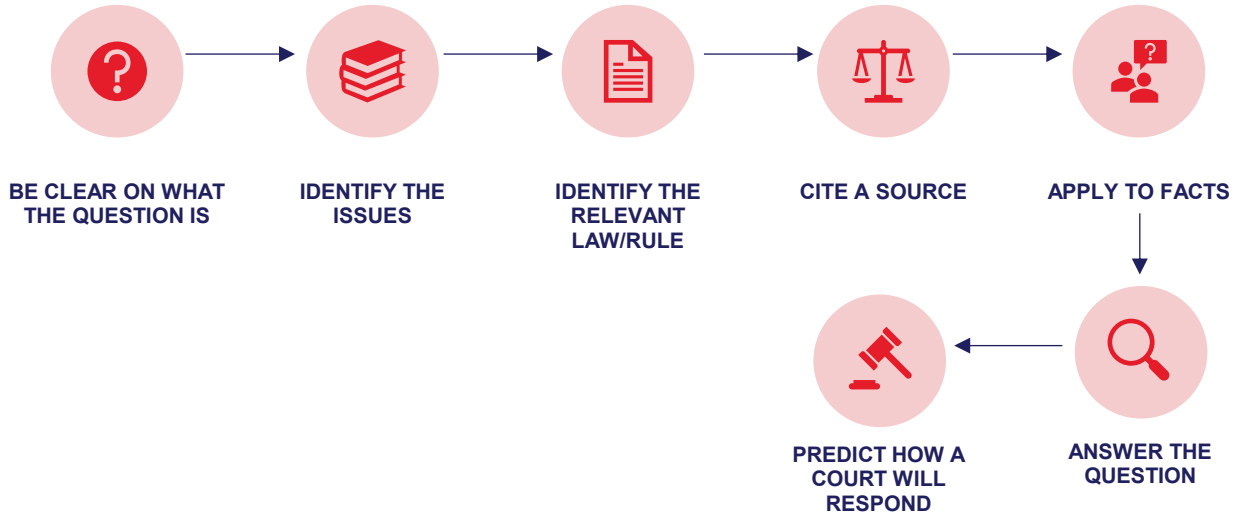
Number each conclusion to correspond with each issue. Clone the wording of the issues as closely as possible.

Should summarise your main arguments and must be logically consistent with your argument

This part may also be relied on as a summary for other uses (e.g., for the firm's information retrieval system or knowledge bank / index).



At risk of over simplifying

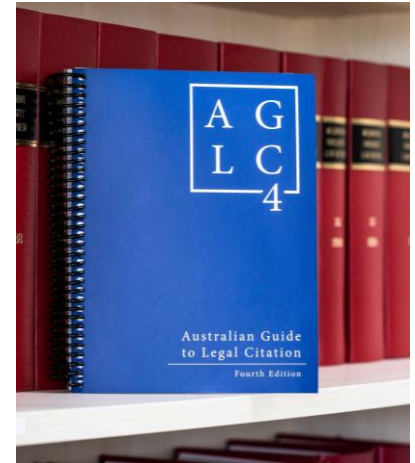


8. Sources consulted (reference list / research checklist)

For this assignment, attach a properly formatted (AGLC4) reference list.

In real life, talk to your supervisor – they will generally want either a list of the authorities you reviewed or some kind of standard checklist of sources consulted.

- Include full, accurate citations for cases and secondary sources for current and future reference.
- Often your boss will look for you to specify the exact search terms used in any electronic research, the databases searched, and the number of cases, records, or “hits.”
- Identify any helpful Web sites visited.
- List your sources in a logical order (e.g., reverse chronology, most to least germane or authoritative)
- **In assignments: USE AUSTRALIAN GUIDE TO LEGAL CITATION**





Language

Verb Tense

Most guidelines suggest that you state:

Facts and court decisions in the past tense.

Legal rules in the present tense.

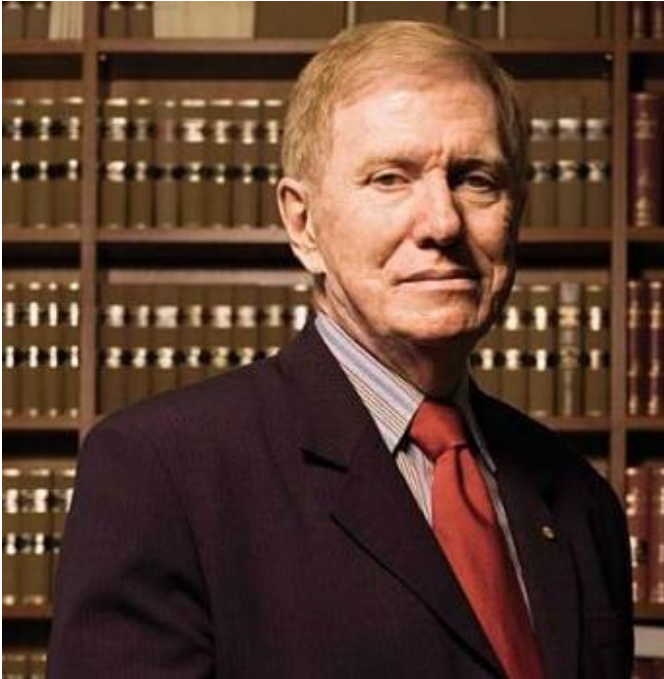
Recommendations prospectively.

Word Choices

In a letter of opinion, you express your considered conclusion based on logic and reason, so the following phrases are seldom appropriate:

- I believe ... I feel ...
- I suppose ... I am leaning toward ...

Former High Court Justice, the Hon Mr Michael Kirby



- 10 writing rules for writing legal advice
- Detailed on the next slide



Kirby J – 10 Writing Rules

1. Complex statements of facts and law should begin with a summary to let the reader know where he or she will be travelling;
2. Short sentences and shorter words should replace long;
3. The passive voice should generally be banished and replaced with active voice. This assumes that lawyers of today have learned what “active” and “passive” voice means. But it can be explained.
4. Words of connection should be at the beginning of sentences. Words of emphasis should generally be at the end.
5. Where there is a choice, the shorter word (ordinarily from a Germanic root) should be preferred to the longer word (ordinarily from the French language of the Norman Conqueror);
6. Sexist and obviously ambiguous language should be removed;
7. Vagueness is sometimes necessary in legal drafting. However, ambiguity should generally be tackled head on; 8. Those old potboilers “whereas”, “hereinunder”, “cognisant”, “requisite” should be deleted;
9. Layout is a technique of communication that matters. It can assist human understanding. As can headings and sub-headings; and
10. In legal texts that will cross borders, it will generally be necessary to be especially careful in the use of words. Mr. Keating found this when he used the word “recalcitrant” in describing the attitudes of the then Prime Minister of Malaysia. Seemingly, the word had a more pejorative meaning in Malay than in the English language.

- Source: https://www.michaelkirby.com.au/images/stories/speeches/2000s/2009+/2407.Speech_-_Plain_Language_Conf.Sydney_October_2009.pdf



Use an active voice

Subject + verb + Object.

“Think of it this way: if you’re active, you do things; if you’re passive, things are done to you. It’s the same with subjects of sentences. In an active voice construction, the subject does something (‘The court dismissed the appeal’). In a passive-voice construction, something is done to the subject (‘The appeal was dismissed by the court’).”

– Bryan Garner



Don't nominalise verbs

Don't convert verbs to nouns – it's confusing for your reader

Examples:

Nominalization: There was committee agreement.

Fix: The committee agreed.

Nominalization: Her reporting of the event.

Fix: She reported the event.

You can often spot nominalized verbs by looking for certain endings:

-al

-ment

-ant

-ence

-ion

-ent

-ancy

-ency

-ance

-ity

Words are like money, spend them wisely!

A legal document that can convey its message in as little space as possible is more useful than one that rambles for many pages. When you have something to say, get right to it! Inflating your sentences and paragraphs with unnecessary words or pointless filler only obfuscates what you mean to say.

So, streamline your writing by following a few rules:

First, use the active voice over the passive

Second, use concrete rather than abstract language

Third, cut out all of those word-wasted idioms (“he was aware of the fact that” instead of “he knew”, for example).

Fourth, use lists....



Size matters – and shorter is better!

This is true of paragraphs and sentences

Avoid run on sentences

One idea per paragraph



Check Homophones

Ensure / Insure — “ensure” means to confirm that something will happen, while “insure” refers to the monetary insurance of something or someone.

Formerly / Formally — “Formerly” means in the past, previously, or in earlier times, while “formally” means conforming to convention, ceremony, and proper etiquette.

Their / There / They’re — “their” is the possessive case of the pronoun “they”, while “there” is an adverb that means in or at that place, and “they’re” is a contraction of the words “they” and “are.”

Its / It’s — “Its” is the possessive form of “it”, while “it’s” is the contraction of “it” and “is”.



Legalese/Long words don't make you look clever

“Any profession has its jargon... I can't bear it. I don't even like legal Latin. If you can say it in plain English, you should.” **Ruth Bader Ginsburg, U.S. Supreme Court Justice**

aforementioned → previously stated

utilize → use

at the present time → now/currently

subsequent to → after

inter alia → among other things

arguendo → for the sake of argument

Avoid compound constructions

Compound	Simple
At the point in time	Then
By means of	By
By reason of	Because
By virtue of	By / under
For the purpose of	To
For the reason that	Because
In accordance with	By / under

Compound	Simple
Inasmuch as	Since
In connection with	With / about / concerning
In favour of	For
In order to	To
In relation to	About / concerning
In the even that	If
In the nature of	Like
Prior to	Before
Subsequent to	after
With a view to	To
With reference to	About / concerning

Compare approaches

The case before us alleges that the plaintiff was taken to the hospital by paramedics, where she underwent complicated surgery, and where she claims she obtained the infection by means of negligence. The parties are in agreement by stipulation that the only issues in this case are the surgeon's negligence and the hospital staff's negligence. The trial itself should be short as, inter alia, the plaintiff's recollection included only two witnesses. As aforementioned, damages will only be discussed subsequent to the court's ruling on these issues. Assuming, *arguendo*, a verdict in favor of the plaintiff is returned by the jury, it is likely the plaintiff will receive a substantial award of damages

Plaintiff alleges that paramedics took her to the hospital where she underwent complicated surgery and obtained an infection due to negligence. The parties stipulated that the only issues in this case are the surgeon's negligence and the hospital staff's negligence. The trial should be short as, among other things, the plaintiff recalled there only being two witnesses. As previously stated, damages will only be discussed after this court's ruling on these issues. Assuming the jury returns a verdict in favor of the plaintiff, the damages will likely be substantial.

Source:

https://www.law.columbia.edu/sites/default/files/microsites/writing-center/files/plain_english_handout.pdf

Citations

AGLC4, Get them right!

Don't let citations interfere with your message. Remember to avoid long introductory phrases in your sentences. It is better to let the citation stand alone at the end of a sentence or paragraph. Statements like this make it difficult for the reader to grasp the point, when it finally arrives:

In *Placer Development Ltd v Commonwealth* (1969) 121 CLR 353, the Court held...

Instead of following that style, state the important conclusion from the case, and then append the citation.

The law is clear that.... See *Placer Development Ltd v Commonwealth* (1969) 121 CLR 353 (*Placer*)



Citations (continued)

Avoid string citations

Cite only the leading case in the text of your letter or memorandum. If you need to cite three or four other cases, put the citations in a footnote. Or use endnotes at the back of your memorandum or as a schedule.

No one reads a long string of citations, especially if it is italicized or underlined. The eye just skips over text blocks with such features. String citations also pose a problem to the reader in connecting the introductory words with the ideas, which follow the list of citations.



Footnotes & Quotations

- Excessive use of footnotes is a common offense among legal writers. Anything, which is essential to understanding the text, should be in the text itself, not in footnotes. Many believe that in letter opinions, there should be no footnotes.

(For authority on this point, see *Lost Words: The Economical, Ethical and Professional Effects of Bad Legal Writing*, Occasional Papers 7, Section of Legal Education and Admissions to the Bar, American Bar Association, Indianapolis, 1994.)

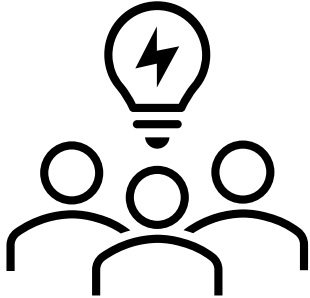
- Legal writers use too many quotations. Don't quote someone else unless the way the writer has expressed the thought is a gem you cannot equal. When referring to case precedents, summarize or paraphrase whenever you can. When you must quote, be precise in electing what must be used and what can be cut



REVIEW THE ASSESSMENT CRITERIA



Proofread. Every. Single. Word.



- Online tools are not enough
- Get someone else to do it for you if you can (not being another student!)
- Listen to it

ANSWER THE QUESTION!





Good luck!

